

The Aircraft (Investigation of Accidents and Incidents) Rules, 2012

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Union of India - Act

The Aircraft (Investigation of Accidents and Incidents) Rules, 2012

UNION OF INDIA

India

The Aircraft (Investigation of Accidents and Incidents) Rules, 2012

Rule THE-AIRCRAFT-INVESTIGATION-OF-ACCIDENTS-AND-INCIDENTS-RULES-2012 of 2012

Published on 5 July 2012

Commenced on 5 July 2012

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The Aircraft (Investigation of Accidents and Incidents) Rules, 2012

Published vide Notification No. G.S.R. 536(E), dated 5th July 2012

G.S.R. 536(E). - Whereas the draft of Aircraft (Investigation of Accidents and Incidents) Rules, 2012 was published as required by section 14 of the Aircraft Act, 1934 (22 of 1934), vide notification of the Government of India in the Ministry of Civil Aviation published in the Gazette of India Extraordinary, Part II, Section 3, Sub-section (1), vide number G.S.R 244(E), dated the 23rd March, 2012, for inviting objections and suggestions from all persons likely to be affected thereby before the expiry of the period of thirty days from the date on which copies of the Gazette of India in which the said notification was published, were made available to public;

And whereas copies of the said notification were, made available to the public all the 23rd March, 2012;

And whereas the objections or suggestions received in respect of the draft rules within the period specified have been taken into consideration;

Now, therefore, in exercise of the powers conferred by sections 4,7 and 10 of the said Act, the Central Government hereby makes the following rules, namely :-

1.

Short title, extent and commencement.

(1)

These rules may be called the Aircraft (Investigation of Accidents and Incidents) Rules, 2012.

(2)

These rules extend to the whole of India and applies also -

(a)

to citizens of India wherever they may be;

(b)

to and to the persons on, aircraft registered in India wherever they may be;

(c)

to and to the persons on, aircraft registered outside India but for the time being in or over India; and

(d)

to an aircraft operated by a person who is not a citizen of India but has his principal place of business or permanent residence in India.

(3)

They shall come into force on the date of their publication in the Official Gazette.

2.

Definitions and interpretations.

- In these rules, unless there is any thing repugnant in the subject or context -

(a)

"accident" shall mean an occurrence associated with the operation of all aircraft which,-

(i)

in the case of a manned aircraft, takes place between the time any person boards the aircraft with the intention of flight until such time as all such persons have disembarked; or

(ii)

in the case of an unmanned aircraft, takes place between the time the aircraft is ready to move with the purpose of flight until such time as it comes to rest at the end of the flight and the primary propulsion system is shut down, in which -

(a)

a person is fatally or seriously injured as a result of-

(i)

being in the aircraft, or

(ii)

direct contact with any part of the aircraft, including parts which have become detached from the aircraft, or

(iii)

direct exposure to jet blast,

except when the injuries are from natural causes, self inflicted or inflicted by other persons, or when the injuries are to stowaways hiding outside the areas normally available to the passengers and crew; or

(b)

the aircraft sustains damage or structural failure which -

(i)

adversely affects the structural strength, performance or flight characteristics of the aircraft, and

(ii)

would normally require major repair or replacement of the affected component,

except for failure of engine or damage, when the damage is limited to a single engine, (including its cowlings or accessories), to propellers, wing tips, antennas, probes, vanes, tires, brakes, wheels, fairings, panels, landing gear doors, windscreens, the aircraft skin (such as small dents or puncture holes), or for minor damages to main rotor blades, tail rotor blades, landing gear, and those resulting from hail or bird strike (including holes in the radome); or

(c)

the aircraft is missing or is completely inaccessible.

Note 1. - For the purposes of this clause, the guidance for the determination of aircraft damage is at Scheduled B.

Note 2. - For the purposes of this clause, only unmanned aircraft which have design of operational approval given by a State to be considered.

(b)

"accredited representative" means a person designated by a State, on the basis of his or her qualifications, for the purpose of participating in an investigation conducted by another State and where the State has established an accident investigation authority the designated accredited representative would normally be from that authority;

(c)

"Act" means the Aircraft Act, 1934 (22 of 1934);

(d)

"adviser" means a person appointed by a State, on the basis of his or her qualifications, for the purpose of assisting its accredited representative in an investigation;

(e)

"aircraft" means any made line that can derive support in the atmosphere from the reactions of the air other than the reactions of the air against the surface of the earth;

(f)

"Aircraft Accident Investigation" means a person appointed by the Central Government to investigation an accident or a serious incident or an incident either by Committee of Inquiry under rule 11, or Formal Investigation under rule 12, or authorised by Bureau to conduct preliminary investigation under sub-rule (1) of rule 9 or sub-rule (2) of rule 7;

(g)

"Annex 13" means Annex 13 to the Convention relating to International Civil Aviation signed at Chicago on the 7th day of December, 1944 as amended from time to time;

(h)

"Bureau" means Aircraft Accident Investigation Bureau set up by the Central Government under rule 9;

(i)

"causes" means actions, omissions, events, conditions, or a combination thereof, which led to the accident or incident but does not amount to assigning fault or determination of administrative, civil or criminal liability;

(j)

"Chicago Convention" means Convention relating to International Civil Aviation signed at Chicago on the 7th day of December, 1944 as amended from time to time;

(ja)

["contributing factors" mean actions, omissions, events, conditions, or a combination thereof, which if eliminated, avoided or absent, would have reduced the probability of the accident or incident occurring, or mitigate the severity of the consequences of the accident or incident and the identification of the contributing factors does not imply the assignment of fault or determination of administrative, civil or criminal liability.]

[Inserted by Notification No. G.S.R. 808(E), dated 23.10.2012 (w.e.f. 5.7.2012).]

(k)

"Director-General" means Director General of Civil Aviation;

(l)

"fatal injury" means an injury which is sustained by a person in an accident and which results in his or her death within 30 days of the date of the accident;

(m)

"Final Report" means the report made public by the Central Government under sub-rule (2) of rule 14.

(n)

"flight recorder" means any type of recorder installed in the aircraft for the purpose of assisting accident or incident investigation;

(o)

"ICAO" means International Civil Aviation Organisation created under the Convention relating to International Civil Aviation signed at Chicago on the 7th day of December, 1944;

(p)

"incident" means an occurrence, other than an accident, associated with the operation of an aircraft which affects or could affect the safety of operation;

(q)

"Inquiry Officer" means a person appointed by the Director-General under rule 13 to investigate a serious incident or an incident.

(r)

"investigation" means a process conducted for the purpose of prevention of accident which includes the gathering and analysis of information, the drawing of conclusion, including the determination of causes, contributing factors and, when appropriate, the making of safety recommendation;

(s)

"maximum mass" means maximum certificated take-off mass;

(t)

"missing aircraft" means when the official search has been terminated and the wreckage of the aircraft has not been located;

(u)

"operator" means a person, organization or enterprise engaged in or offering to engage in operation of an aircraft;

(v)

"preliminary report" means the communication used for the prompt dissemination of data obtained during the early stages of the investigation;

(w)

"safety recommendation" means-

(i)

a proposal of an accident investigation authority based on information derived from an investigation, made with the intention of preventing accidents or incidents and which in no case has the purpose of creating a presumption of blame or liability for an accident or incident;

(ii)

recommendations resulting from diverse sources and safety studies,

(x)

"Schedule" means a Schedule to these rules;

(y)

"serious incident" mean an incident involving circumstances indicating that there was a high probability of an accident and associated with the operation of an aircraft which,-

(i)

in the case of a manned aircraft, takes place between the time any person boards the aircraft with the intention of flight until such time as all such persons have disembarked, or

(ii)

in the case of an unmanned aircraft, takes place between the time the aircraft is ready to move with the purpose of flight until such time as it comes to rest at the end of the flight and the primary propulsion system is "shut down";

Note. - The examples of serious incident are as specified in Schedule A.

(z)

"serious injury" means an injury which is sustained by a person in an accident and which-

(i)

requires hospitalisation for more than 48 hours, commencing within seven days from the date the injury was received; or

(ii)

results in a fracture of any bone (except simple fractures of fingers, toes or nose); or

(iii)

involves lacerations which cause severe hemorrhage, nerve, muscle or tendon damage; or

(iv)

involves injury to any internal organ; or

(v)

involves second or third degree burns, or any burns affecting more than 5 per cent of the body surface; or

(vi)

involves verified exposure to infectious substances or injurious

(za)

"State of Design" means the State having jurisdiction over the organization responsible for the type design of the aircraft;

(zb)

"State of Manufacture" means the State having jurisdiction over the organisation responsible for the final assembly of the aircraft;

(zc)

"State of Occurrence" means the State in the territory of which an accident or incident occurs;

(zd)

"State of the Operator" means the State in which the principal place of business of the operator is located or, if there is no such place of business, the permanent residence of the operator;

(ze)

"State of Registry" means the State on whose register the aircraft is entered.

(zf)

["State Safety Programme" means an integrated set of regulations and activities aimed at improving safety;]

[Inserted by Notification No. G.S.R. 808(E), dated 23.10.2012 (w.e.f. 5.7.2012).]

Explanation. - In the case of the registration of aircraft of an international operating agency other than on a national basis the States constituting the agency shall jointly and severally discharge the obligations which attach to a State of Registry under Annex 13.

3.

Objective of the investigation of accidents and incidents.

(1)

The sole objective of the investigation of an accident or incident shall be the prevention of accidents and incidents and not to apportion blame or liability.

(2)

Any investigation conducted in accordance with the provisions of these rules shall be separate from any judicial or administrative proceedings to apportion blame or liability.

4.

Notification.

(1)

Where an accident or an incident occurs to an aircraft covered under sub-rule (2) of rule 1, then the pilot-in command of the aircraft or, if he be killed or incapacitated, the owner, the operator, the hirer or other person on Whose behalf he was in command of the aircraft, or any relevant person, as the case may be, shall, as soon as is reasonably practicable but in any case not later than 24 hours after he becomes aware of the accident or the incident:-

(a)

send notice thereof to the Aircraft Accident Investigation Bureau and Director-General of Civil Aviation by the quickest means of communication available; and

(b)

in the case of an accident occurring in India, give information to the District Magistrate and the Officer-in charge of the nearest Police Station of the accident and of the place where it occurred.

(2)

The notification shall be in plain language and contain as much of the following information as is readily available, namely :-

(a)

for accidents the identifying abbreviation ACCID, for incidents INCID;

(b)

manufacturer, model, nationality and registration marks, and serial number of the aircraft;

(c)

name of owner, operator and hirer, if any, of the aircraft;

(d)

qualification of the pilot-in-command and nationality of crew and passengers;

(e)

date and time the accident or incident;

(f)

last point of departure and point of intended landing of the aircraft;

(g)

position of the aircraft with reference to some easily defined geographical point and latitude and longitude;

(h)

number of crew and passengers; aboard, killed and seriously injured; others, killed and seriously injured;

(i)

description of the accident or incident and the extent of damage to the aircraft so far as is known;

(j)

physical characteristics of the accident or incident area, as well as an indication of access difficulties or special requirements to reach the site, and

(k)

presence and description of dangerous goods on board the aircraft, but notification shall not be delayed due to the lack of complete information.

(3)

If the details or, other known relevant information referred in sub-rule (2) are omitted, such information shall also be dispatched as soon as it is possible.

(4)

The notification as required in sub-rule (2) shall also be submitted to the Bureau by the concerned -

(a)

aerodrome operator;

(b)

officer-in-charge of air traffic control unit and the watch supervisory officer of air traffic control, and

(c)

regional or the sub-regional officers of the Directorate General of Civil Aviation.

(5)

The Bureau under the intimation to the Central Government shall notify the facts of the accident or serious Incident in the Indian territory or in the assigned oceanic air space beyond the territory of India, containing as much of the information referred to in sub-rule (2) as may be available with a minimum of delay and by the most suitable and quickest means available, to -

(a)

the State of Registry;

(b)

the State of Operator;

(c)

the State of Design;

(d)

the State of Manufacture; and

(e)

ICAO when the aircraft involved is of a maximum mass of over 2,250 kg or is a turbojet powered aeroplane.

(6)

The Bureau while notifying information in accordance with sub-rule (5) shall also add the following information, namely -

(a)

an indication to what extent the investigation will be conducted by the Central Government or is proposed to be delegated by the Central Government to another State, namely -

(b)

identification of the originating authority and means to contact the investigator-in-charge and the accident investigation authority of India at any time.

(7)

If the State of Occurrence is not aware of a serious incident to an Indian registered aircraft or an aircraft operated by Indian operator, the Bureau shall forward a notification of such an incident to the State of Design, the State of Manufacturer and the State of Occurrence.

5.

Obligation to investigate.

(1)

In case of accident or an incident to an aircraft in the territory of India notwithstanding its registration :-

(a)

the Central Government shall institute an investigation into the circumstances of the accident and shall be responsible for conducting the investigation;

(b)

The Central Government shall institute an investigation into the circumstances of the serious incident when the aircraft involved is of a maximum mass of over 2250 kg or is a turbo-jet air-plane;

(c)

the Director-General shall institute an investigation into the circumstances of all incidents and serious incidents to aircraft not covered by clause(b).

(2)

Notwithstanding anything contained in clause (c) of sub-rule (1), where it appears to the Central Government that it is expedient to hold an investigation into circumstances of any incident or a serious incident covered by clause (c) of sub-rule (1), it may, by order institute an investigation into circumstances of an incident or a serious incident to any aircraft.

(3)

Classification by the Central Government of an occurrence as accident or serious incident or incident shall be final and binding.

(4)

In case an accident or a serious incident to an Indian registered aircraft occurs at a location not being a territory of any state then the Central Government shall institute an investigation into the circumstances of the accident or serious incident and shall be responsible for conducting the investigation.

(5)

In case India is the nearest State to the scene of an accident in international waters to an aircraft not registered in India or not operated by an Indian operator, then the Central Government shall advise the State of Registry to institute an investigation and the Central Government in such a case shall provide assistance to the extent it is able to and shall, likewise, respond to requests by the State of Registry.

6.

Participation.

(1)

In case the Central Government has instituted an investigation of an accident or a serious incident in accordance with rule 5, then accredited representatives, who are appointed by the following State, namely :-

(a)

the State of Registry;

(b)

the State of the Operator;

(c)

the State of Design; and

(d)

the State of Manufacture;

shall be permitted to participate in the investigation

(2)

The States referred to in sub-rule (1) shall also be entitled to appoint one or more advisers to assist their accredited representatives.

(3)

The States referred to in sub-rule (1) shall have the rights and entitlements in accordance with the standard stipulated under Annex 13.

(4)

A State which has a special interest in an accident by virtue of fatalities or serious injuries to its citizens shall be entitled to appoint an expert who shall have rights and entitlements in accordance with standards stipulated under Annex 13.

(5)

The Central Government, on receipt of a notification of an accident or a serious incident to an Indian registered aircraft in the territory of another State, may appoint accredited representative and advisors to participate in the investigation and intimate it to the State of Occurrence.

7.

Protection of evidence, custody, removal and preservation of damaged aircraft.

(1)

in the case of an accident or a serious incident, which is required to be notification under rule 4, the aircraft shall not, except by a person under the authority of the Bureau, be removed or otherwise interfered with.

Provided that -

(a)

the aircraft or any parts or contents thereof may be removed or interfered with so far as may be necessary by persons authorised to conduct search and rescue operations for the purpose of extricating persons or animals dead or alive, or preventing the destruction of the aircraft and its contents by fire or other cause or of preventing any damage or obstruction to the public or to air navigation or to other transport;

(b)

if the aircraft is wrecked on water, the aircraft or any parts or contents thereof may be removed to such extent as may be necessary for bringing it or them to a place of safety by persons authorised to conduct search and rescue operations.

(c)

goods may be removed from the aircraft under the supervision and with the concurrence of an officer of the Bureau or a person authorised by the Bureau;

(d)

personal luggage of passengers' and crews' may be removed from the aircraft under the supervision of a Police Officer, a Magistrate, an Officer of the Bureau or a person authorised by the Bureau; and

(e)

mails may be removed under the supervision of a Police Officer, a Magistrate, an Bureau a person authorised by the Bureau.

(2)

The Bureau may, for the purposes of any investigation including preliminary investigation under these rules, authorise any person or persons to take measures.

(a)

to protect the evidence and shall include the preservation, by photographic or other means, of any evidence which might be removed, effaced, lost or destroyed;

(b)

to maintain safe custody of the aircraft and its contents and shall include protection against further damage, access by unauthorized persons, pilfering and deterioration; and

(c)

for preservation of the aircraft for such a period as may be necessary for the purposes of an investigation.

(3)

The person or person authorised by the Bureau under sub-rule (2) may thereupon have access to examine or otherwise deal with the aircraft.

(4)

The owner of the aircraft or his nominated representative shall have the right to be present during any examination or other action taken under sub-rules (1) and (2):

Provided that the Bureau shall not be bound to postpone any action which it may consider necessary under this rule by

reason of the absence of the owner or his representative.

(5)

If a request is received from the State of Registry, the State of the Operator, the State of Design or the State of Manufacture that the aircraft, its contents, and any other evidence remain undisturbed pending inspection by an accredited representative of the requesting State, the Bureau shall take all necessary steps to comply with such request, so far as this is reasonably practicable and compatible with the proper conduct of the investigation subject to the provisions of sub-rule(1).

(6)

Subject to the provisions of sub-rules (1), (2) and (3), the Bureau shall release custody of the aircraft, its contents or any parts thereof as soon as they are no longer required for investigation, to any person or person duly designated by the State of Registry or the State of the Operator, as the case may be.

(7)

For the purpose of sub-rule (6), the Central Government shall facilitate access to the aircraft, its contents or any parts thereof:

Provided that, if the aircraft, its contents, or any parts thereof lie in an area within which the Central Government finds it impracticable to grant such access, it shall itself effect removal to a point where access can be given.

8.

Aircraft Accident Investigation Bureau.

(1)

For the purpose of carrying out investigation into accidents, serious incidents and incidents referred to in sub-rules (1), (2) and (4) of rule 5, the Central Government shall set up a Bureau in the Ministry of Civil Aviation known as the Aircraft Accident Investigation Bureau of India and appoint other persons, as it deems fit from time to time.

(2)

The Aircraft Accident Investigation Bureau shall function under overall supervision and control of Government of India, Ministry of Civil Aviation.

(3)

The Aircraft Accident Investigation Bureau shall discharge the following functions, namely :-

(a)

obtaining preliminary report under rule 9 from any person or persons authorised either under sub-rule (1) of rule 9 or under sub-rule (2) of rule 7;

(b)

assisting the Central Government in setting up of Committee of Inquiry and formal investigation under these rules;

(c)

to facilitate the investigation and administrative work of the Committees and Courts, whenever necessary.

(d)

processing of the reports of Courts and Committees of Inquiry received by the Central Government, which includes -

(i)

forwarding of the reports to the States for consultation under sub-rule (1) of rule 14;

(ii)

forwarding the report made public by the Central Government under sub-rule (2) of rule 14 to the States as required under Annex 13;

(iii)

forwarding the report made public by the Central Government under sub-rule (2) of rule 14 to ICAO if the mass of the aircraft involved in accident or incident is more than 5,700kg;

(e)

follow-up the recommendations made by Courts and Committees of inquiry and to ensure that are implemented by the concerned agencies;

(f)

to process cases for a resolution by the Central Government of disputes between the Bureau and any agency regarding implementation of a recommendation;

(g)

to formulate safety recommendation on the basis of safety studies, including induction of new technology to enhance safety, conducted from time to time.

(h)

[establish and maintain an accident and serious incident database to facilitate the Director-General of Civil Aviation in effective analysis of information on actual or potential safety deficiencies.]

[Substituted by Notification No. G.S.R. 808(E), dated 23.10.2012 (w.e.f. 5.7.2012).]

(i)

to process obligations of the Central Government under Annex 13 to the Convention relating to International Civil Aviation signed at Chicago on the 7th day of December, 1944 as amended from time to time; and

(j)

any other functions, which the Central Government may ask the Bureau to perform from time to time under these rules.

(4)

The Aircraft Accident Investigation Bureau may, by notification in the Official Gazette and with the previous approval of the Central Government, make procedures, not inconsistent with the provisions of the Act to carry out the purposes of these rules and the functions referred to in sub-rule (3).

(5)

In particular and without prejudice to the generality of the foregoing power, such procedures may provide for all or any of the following matters, namely :-

(a)

the persons required to notify the accidents and incidents;

(b)

the notification of accidents and serious incidents to International Civil Aviation Organisation and the States for participation in the investigation;

(c)

the investigation of aircraft accident and incidents;

(d)

the format of preliminary and reports of Committee of Inquiry and Formal Investigation conducted under these rules;

(e)

the consolidation and follow-up of safety recommendations made by the Committee of Inquiry and Formal Investigation with the agencies required to implement the recommendations and require action taken reports from these agencies; and

(f)

any other matter subsidiary or incidental to aircraft accident and incident investigation.

9.

Preliminary investigation.

(1)

The Bureau may authorise any person including an officer of the Bureau to conduct a preliminary investigation to an accident or incident and to submit a preliminary report to the Bureau in a specified format to assess the classification of the occurrence and the expertise needed for detailed investigation under rules 11 or 12, if considered expedient by the Central Government.

(2)

The person authorised to conduct the preliminary investigation shall -

(a)

have powers under rule 10 of Aircraft Accident Investigation ; and

(b)

have access examine or otherwise deal with the aircraft as provided under sub-rule (3) or rule 7.

10.

Power of Aircraft Accident Investigations.

(1)

For the purposes of investigation of accidents and incidents an Aircraft Accident Investigator shall have power -

(a)

to require the attendance of any person, by summons under his hand, whom he thinks fit to call before him and examine for such purpose and to require answers or returns to any inquiries he thinks fit to make;

(b)

to require any such person to make and to sign a declaration regarding the true nature of the statements made by him;

(c)

to require and enforce the production of all books, paper, documents and articles which he may consider necessary for the investigation, and to retain any such books, papers, documents and articles until completion of the investigation;

(d)

to have access to and examine any aircraft and its components involved in the accident or incident, the place where the accident or incident occurred or any other place, the entry upon and examination of which appears to the Investigation necessary for the purpose of the investigation.

11.

Committee of inquiry.

(1)

The Central Government may, at its discretion, appoint a Committee of Inquiry composed of two or more persons to hold an inquiry into an aircraft accident or a serious incident and such a Committee shall have the same powers as an Aircraft Accident Investigator under rule 10.

(2)

The Inquiry shall be held in private.

(3)

The Central Government may notify in such manner as it may think fit that an inquiry is being held and every such notice shall state that any person who may desire to make representations concerning the circumstances or causes of the accident may do so in writing within the time specified in the notice.

(4)

When a person other than an officer of Government is appointed as a member of the Committee of Inquiry he may be granted such fee and expenses as may be determined by the Central Government.

(5)

Every person summoned by the Committee of Inquiry as a witness in accordance with these rules shall be allowed such expenses as the Central Government may from time to time determine.

(6)

The Committee of Inquiry shall make a report to the Central Government in the format specified by the Bureau based on relevant standards of Annex 13.

12.

Formal Investigation.

- Where it appears to the Central Government that it is expedient to hold a formal investigation of an accident, it may, whether or not an inquiry has been made under rule 11, by order, direct a formal investigation to be held and with respect to any such formal investigation the following provisions shall apply, namely:-

(1)

The Central Government shall appoint a competent person (hereinafter referred to as "the Court"), to hold the investigation, and may appoint one or more persons possessing legal aeronautical, engineering, or other special knowledge to act as assessors. It may also direct that the Court and the assessors shall receive such remuneration it may determine.

(2)

On the appointment of the Court, all other investigations ordered under these rules shall be treated as closed and all relevant material on the subject shall be transferred to the Court.

(3)

The Court shall hold the investigation in open court in such manner and under such conditions as the Court may think fit for ascertaining the causes and circumstances of the accident and for enabling it to make the report hereinafter mentioned:

Provided that where the Court is of opinion that holding the investigation is likely -

(a)

to be prejudicial to the interests of any country; or

(b)
to jeopardise the personal safety of a person who is willing to make any statement or give evidence, the Court may, hold in camera, the whole or part of the investigation.

(4)
The Court shall have, for the purpose of the investigation, all the powers of a Civil Court under the Code of Civil Procedure, 1908 (5 of 1908) and without prejudice to these powers the Court may:-

(a)
enter and inspect, or authorise any person to enter and inspect, any place or building, the entry or inspection whereof appears to the Court requisite for the purposes of the investigation; and

(b)
enforce the attendance of witnesses and compel the production of documents and material objects; and every person required by the Court to furnish any information shall be deemed to be legally bound to do so within the meaning of section 176 of the Indian Penal Code (45 of 1860).

(5)
The assessors shall have the same powers of entry and inspection as the Court.

(6)
Every person attending as a witness before the Court shall be allowed such expenses as the Court may consider reasonable:

Provided that, in the case of the owner or hirer of any aircraft concerned in the accident and of any person in his employment or to any other person concerned in the accident, any such expenses may be disallowed if the Court, in its discretion, so directs.

(7)
The Court shall make a report to the Central Government in the format specified by the Bureau based on relevant standard of Annex 13.

(8)
The assessors shall either sign the report, with or without reservations, or state in writing their dissent therefrom and their reasons for such dissent, and such reservations or dissent and reason if any shall be forwarded to the Central Government with the report.

13.
Investigation of incident.

(1)
The Director-General may order an investigation of any incident or a serious incident involving an aircraft covered under clause (c) sub-rule (1) of rule 5, and may appoint a competent and qualified person as inquiry officer for the purpose of carrying out the investigation.

(2)
In case the Central Government decides to investigate the incident or serious incident under sub-rule (2) of rule 5, the investigation ordered by Director-General under sub-rule (1) shall be closed and all relevant material shall be transferred to the Court or the Committee appointed by the Central Government for its investigation.

(3)
The investigation referred to in sub-rule (1) be held in private.

(4)
The Inquiry Officer shall have the same powers as an Aircraft Accident Investigator under rule 10.

(5)
The inquiry officer shall make a report to the Director General in the format specified by the Bureau based on relevant standards of Annex 13.

(6)
The Director-General shall forward the report of the Inquiry officer to the Central Government with such comments as the Director General may think fit to make and the Central Government may, at its discretion, make the whole or part of any such report public in such a manner as it may consider fit.

14.

Consultation and Final Report.

(1)

The Bureau shall forward a copy each of the report received from either the Court under sub-rule (7) of rule 12 or Committee of Inquiry under sub-rule (6) of rule 11 to -

(a)

the State of registry,

(b)

the State of operator,

(c)

the State of design,

(d)

the State of manufacturer, and

(e)

the State that participated in the investigation in accordance with sub-rule (4) of rule 6, inviting their significant and substantiated comments on the report within sixty days of its issuance.

(2)

The Central Government may either amend the report by inclusion of the substance of the comments received within sixty days of the issuance of the report or by appending the comments thereto if so desired by the State and may cause any such Final Report and reservation or dissent and reasons, if any, to be made public, wholly or in part, in such manner as it thinks fit.

(3)

The Final Report made public by the Central Government shall be forwarded the State entitled to receive such report under Annex 13. The report shall also be forwarded to ICAO, if the mass of the aircraft involved in the accident or incident is more than 5,700kg.

15.

Reopening of Investigation.

- Where it appears to the Central Government that any new and material evidence has become available after completion of the investigation under rule 11 or rule 12, as the case may be, it may, by order, direct the reopening of the same.

16.

Obstruction of proceedings.

(1)

No person shall obstruct or impede the Court Assessors or members of the Committee of Inquiry or any other person acting in the exercise of any powers or duties under these rules.

(2)

No person shall without reasonable excuse fail to comply with any summons or requisition of a Court or a Committee of Inquiry or an Aircraft Accident Investigator or any other person holding an investigation or an inquiry under these rules.

Explanation - For the purposes of this rule, when a question arises as to whether a person has a reasonable excuse, the burden of proving that he has a reasonable excuse is upon him.

(3)

Any person, who obstructs or impedes the proceedings, shall be punishable in accordance with the provisions of sub-section (2) of section 10 of the Act.

17.

Non-Disclosure of Records.

(1)

The following records shall not be disclosed for purposes other than the investigation of the accident except when the Central Government determines that their disclosure outweighs the adverse domestic and international impact such action may have on that investigation or any future investigations:

(a)

all statements taken from persons by the investigation authorities in the course of their investigation;

(b)

all communications between person having been involved in the operation of the aircraft;

(c)

medical or private information regarding persons involved in the accident or incident;

(d)

cockpit voice recordings and transcripts from such recordings;

(e)

recordings and transcriptions of recordings from air traffic control units;

(f)

cockpit airborne image recordings and any part or transcripts from such recordings; and

(g)

opinion expressed in the analysis of information, including flight recorder information.

(2)

A record referred to in sub-rule(1), shall be included in a Final Report or its appendices, or in any other report only when it is relevant to the analysis of the accident or incident and parts of the records not relevant to the analysis shall not be included in the Final Report.

(3)

The Final Report shall out disclose the names of the persons involved in the accident or incident.

18.

Mandatory incident reporting system.

(1)

The [Director-General of Civil Aviation]

[Substituted by Notification No. G.S.R. 808(E), dated 23.10.2012 (w.e.f. 5.7.2012).]

shall establish a mandatory incident reporting system to facilitate collection of information on actual or potential safety deficiencies.

(2)

[* * *]

[Omitted 'The mandatory incident reporting system shall require the relevant persons, service providers and stakeholders to notify all accidents and incidents by most suitable and quickest means to the Bureau and the Director-General but in any case not later than 24 hours.' by Notification No. G.S.R. 808(E), dated 23.10.2012 (w.e.f. 5.7.2012).]

(3)

The Director-General shall immediately notify the Bureau about the accidents and incidents containing information as specified in sub-rule (2) of rule 4.

(4)

[Any accident or incident shall be notified to the Bureau and the Director-General not later than twenty four hours of such accident or incident, in the most suitable and quickest manner by the service providers and stakeholders specified below:-]

[Substituted 'The relevant persons, service providers and stakeholders specified in sub-rule (2) shall include' by Notification No. G.S.R. 808(E), dated 23.10.2015 (w.e.f. 5.7.2012).]

(a)

the operator and the commander of an aircraft which has a certificate of airworthiness issued by the Directorate General of Civil Aviation;

(b)

the operator and the commander of a foreign aircraft operating to, from or through India;

(c)

a person who carries on the business of maintaining or modifying an aircraft, which has a certificate of airworthiness issued by the Directorate General of Civil Aviation, and a person who carries on the business of maintaining or modifying any equipment or part of such an aircraft;

(d)

a person who carries on the business of manufacturing an aircraft or any equipment or part of such an aircraft, in India;

(e)

a person who signs a certificate of release to service for an aircraft, which has a certificate of airworthiness issued by the Directorate General of Civil Aviation, and a person "who signs a certificate of release to service for any equipment or part of such an aircraft;

(f)

a licensee or manager of a licensed aerodrome or a manager of an airport;

(g)

a person who performs a function as an air traffic controller;

(h)

the organisation which provides Air Navigation Services;

(i)

a person who performs a function concerning the installation, modification, maintenance, repair, overhaul, flight-checking or inspection of air navigation facilities which are utilized by a person who provides all air traffic control service; and

(j)

a person who performs a function concerning the ground-handling of aircraft including fuelling servicing load-sheet preparation loading deicing and towing at an airport.

19.

Voluntary incident reporting system.

(1)

The [Director-General of Civil Aviation]

[Substituted by Notification No. G.S.R. 808(E), dated 23.10.2015 (w.e.f. 5.7.2012).]

shall establish a voluntary incident reporting system to facilitate collection of information on actual or potential safety deficiencies that may not be captured by the mandatory incident reporting system established under rule 18.

(2)

The voluntary incident reporting system established under sub-rule (1) shall be non-punitive and afford protection to the sources of the information and if considered expedient by the Central Government, the information may be collected through any other agency.

20.

[Maintenance of an accident and incident database.

[Substituted by Notification No. G.S.R. 808(E), dated 23.10.2015 (w.e.f. 5.7.2012).]

- The Aircraft Accident Investigation Bureau shall establish and maintain an accident and incident database and provide the same for inclusion in safety data being maintained under the State Safety Programme by the Director-General of Civil Aviation.]

21.

Saving.

- Nothing in these rules shall limit or otherwise affect the power of the Central Government with regard to the cancellation, suspension or endorsement of any licence or certificate issued under the Aircraft Rules, 1937.

22.

Penalties.

- Any person who contravenes, or fails to comply with, any of these rules, or the regulations made under sub-rule (4) and (5) of rule 9, or sub-rules (1) and (2) of rule 15 shall be punishable in accordance with the provisions of the sub-section (2) of section 10 of the Act.

A

[See rule 2 (Y)]

Serious Incidents

1. Serious incident means an incident involving circumstances indicating that there was a high probability of an accident and associated with the operation of an aircraft which, in the case of a manned aircraft, takes place between the time any person boards the aircraft with the intention of flight until such time as all such persons have disembarked or in the case of an unmanned aircraft, takes place between the time the aircraft is ready to move with the purpose of flight until such time as it comes to rest at the end of the flight and the primary propulsion system is shut down.

2. The incidents listed are typical examples of incidents that are likely to be serious incidents. The list is not exhaustive and only serves as guidance to the definition of serious Incident.

(a)

Near collisions requiring an avoidance manoeuvre to avoid a collision or an unsafe situation or when an avoidance action would have been appropriate.

(aa)

[Collisions not classified as accidents.]

[Inserted by Notification No. G.S.R. 808(E), dated 23.10.2015 (w.e.f. 5.7.2012).]

(b)

Controlled flight into terrain only marginally avoided.

(c)

Aborted take-offs on a closed or engaged runway, on a taxiway (Excluding authorized operations by helicopters) or unassigned runway.

(d)

Take-offs from a closed or engaged runway, from a taxiway (Excluding authorized operations) or unassigned runway.

(e)

Landings or attempted landings on a Closed or engaged runway, on a taxiway or unassigned runway.

(f)

Gross failures to achieve predicted performance during take-off or initial climb.

(g)

Fires [or smoke in the cockpit, in the passenger]

[Substituted 'and smoke in the passenger' by Notification No. G.S.R. 808(E), dated 23.10.2015 (w.e.f. 5.7.2012).]

compartment, in cargo compartments or engine fires, even though such fires were extinguished by the use of extinguishing agents.

(h)

Events requiring the emergency use of oxygen by the flight crew.

(i)

Aircraft structural failures or engine disintegration, including un-contained turbine engine failures, not classified as an accident.

(j)

Multiple malfunctions of one or more aircraft systems seriously affecting the operation of the aircraft.

(k)

Flight crew incapacitation in flight

(l)

[Fuel quantity level or distribution situations requiring the declaration of an emergency by the pilot, such as insufficient fuel, fuel exhaustion, fuel starvation, or inability to use all usable fuel on board.]

[Substituted by Notification No. G.S.R. 808(E), dated 23.10.2015 (w.e.f. 5.7.2012).]

(m)

Runway incursions classified with severity A. The Manual on the Prevention of Runway Incursions (Doc 9870) contains information on the severity classifications.

(n)

Take-off or landing incidents Incidents such as under-shooting, overrunning or running off the side of runways.

(o)

System failures, weather phenomena, operations outside the approved flight envelope or other occurrences [which caused or could have]

[Substituted by Notification No. G.S.R. 808(E), dated 23.10.2015 (w.e.f. 5.7.2012).]

caused difficulties controlling the aircraft.

(p)

Failures of more than one system in a redundancy system mandatory for flight guidance and navigation,

(q)

[The unintentional or, as an emergency measure, the intentional release of a slung load or any other load carried

external to the aircraft.]

[Inserted by Notification No. G.S.R. 808(E), dated 23.10.2015 (w.e.f. 5.7.2012).]

B

[See rule 2 (a)]

Guidance for Determination of Aircraft Damage

1. If an engine separates from an aircraft, the event is categorized as an accident even if damage is confined to the engine.
2. A loss of engine cowls (fan or core) or reverser components which does not result in further damage to the aircraft is not considered an accident
3. Occurrences where compressor or turbine blades or other engine internal components are ejected through the engine lap pipe are not considered an accident.
4. A collapsed or missing radome is not considered an accident unless there is related substantial damage in other structures or systems.
5. Missing flap, slat and other lift augmenting devices, winglets, etc., that are permitted for dispatch under the configuration deviation list (CDL) are not considered to be an accident.
6. Retraction of a landing gear leg, or wheels-up landing, resulting in skin abrasion only. If the aircraft can be safely dispatched after minor repairs, or patching, and subsequently undergoes more extensive work to effect a permanent repair, then the occurrence would not be classified as an accident.
7. If the structural damage is such that the aircraft depressurizes, or cannot be pressurized, the occurrence is categorized as an accident.
8. The removal of components for inspection following an occurrence, such as the precautionary removal of an undercarriage leg following a low-speed runway excursion, while involving considerable work, is not considered an accident unless significant damage is found.
9. Occurrences that involve an emergency evacuation are not counted as an accident unless someone receives serious injuries or the aircraft has otherwise sustained significant damage.

Note 1. - Regarding aircraft damage which adversely affects the structural strength, performance or flight characteristics, the aircraft may have landed safely, but cannot be safely dispatched on a further sector without repair.

Note 2. - If the aircraft can be safely dispatched after minor repairs and subsequently undergoes more extensive work to effect a permanent repair, then the occurrence would not be classified as an accident. Likewise, if the aircraft can be dispatched under the CDL with the affected component removed, missing or inoperative, the repair would not be considered as a major repair and consequently the occurrence would not be considered an accident.

Note 3. - The cost of repairs, or estimated loss, such as provided by insurance companies may provide an indication of the damage sustained but should not be used as the sole guide as to whether the damage is sufficient to count the occurrence as an accident. Likewise, an aircraft may be considered a "hull loss" because it is uneconomic to repair, without it having incurred sufficient damage to be classified as an accident.

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